

POLITY 46 - ADMINISTRATIVE TRIBUNALS - PANEL 1/12

PANEL 01/12 - DEFINITION AND CATEGORY FIREWALL

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Tribunal = statute-created specialist adjudicator with limited subject jurisdiction.	
Court = ordinary/constitutional judiciary; High Courts retain Arts 226/227.	
Quasi-judicial describes a function requiring fair hearing; it is wider than tribunal.	
Departmental appeal = executive reconsideration, even when natural justice applies.	
Test every body by source, function, independence, binding power and review route.	
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POLITY 46 - ADMINISTRATIVE TRIBUNALS - PANEL 2/12

PANEL 02/12 - ORIGIN AND CONSTITUTIONAL TIMELINE

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	1976: Forty-second Amendment inserts Part XIV-A, Articles 323A and 323B.
	1985: Administrative Tribunals Act creates CAT route and enables SAT/JAT.
	1987: S.P. Sampath Kumar accepts an effective alternative mechanism context.
	1997: L. Chandra Kumar preserves constitutional review; tribunals become supplemental.
	2010-2021: R. Gandhi, Rojer Mathew and MBA line police independence.
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POLITY 46 - ADMINISTRATIVE TRIBUNALS - PANEL 3/12

PANEL 03/12 - ARTICLE 323A CLAUSE MAP

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(1) Parliament only; recruitment and conditions of service in public employment.	
(2)(a) Union/State/shared-State tribunals; (b) jurisdiction incl contempt.	
(2)(c) procedure incl limitation/evidence; (d) exclusion text except Art 136.	
(2)(e) transfer; (f) Art 371D(3) order; (g) fees/enforcement/incidental.	
(3) notwithstanding clause; L. Chandra Kumar limits exclusion effect.	
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POLITY 46 - ADMINISTRATIVE TRIBUNALS - PANEL 4/12

PANEL 04/12 - ARTICLE 323B CLAUSE MAP

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(1) appropriate Legislature within competence; disputes, complaints or offences.	
(2) tax; forex/import-export; labour; land reform; urban ceiling; elections.	
Also food/essential goods/prices; rent/tenancy; offences/fees; incidental.	
(3) hierarchy, powers incl contempt, procedure, exclusion text, transfer, support.	
(4) notwithstanding clause; constitutional judicial review still survives.	
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POLITY 46 - ADMINISTRATIVE TRIBUNALS - PANEL 5/12

PANEL 05/12 - 323A VERSUS 323B

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323A: service field; Parliament only; administrative tribunal arrangements.	
323B: multiple listed fields; competent Parliament/State Legislature; hierarchy.	
Both are enabling: implementing legislation creates and defines the tribunal.	
Both mention contempt, limitation, evidence, transfer and exclusion text.	
Neither authorises removal of Arts 226/227 and 32 basic-structure review.	
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POLITY 46 - ADMINISTRATIVE TRIBUNALS - PANEL 6/12

PANEL 06/12 - 1985 ACT: INSTITUTIONS, JURISDICTION AND EXCLUSIONS

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	Section 4: CAT; requested SAT; Joint Tribunal for participating States.
	Section 14: covered Union service; Section 15: State; Section 16: JAT.
	Section 2 excludes armed-forces members, judicial staff incl subordinate courts,
	and legislative secretariat staff; civilian defence posts are a distinct inquiry.
	CAT is statutory; body notifications and Section 3(q) matter.
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POLITY 46 - ADMINISTRATIVE TRIBUNALS - PANEL 7/12

PANEL 07/12 - APPLICATION, PROCEDURE AND POWERS

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Adverse service action -> departmental remedy ordinarily (s20) -> OA -> s21 limitation.	
Section 22: natural justice; not rigidly CPC-bound; civil-court-type powers.	
Evidence is flexible but fair; notice, disclosure, impartiality and reasons remain.	
Review is bounded; s27 execution; interim relief is jurisdiction-specific.	
Sections 29/29A transfer qualifying pending matters in statutory situations.	
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POLITY 46 - ADMINISTRATIVE TRIBUNALS - PANEL 8/12

PANEL 08/12 - CONTEMPT, REVIEW AND ROUTES

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| Section 17 gives contempt power; T. Sudhakar Prasad confirms survival. |

| Contempt punishment appeal follows special statutory route to Supreme Court. |

| Ordinary merits order -> territorial High Court Division Bench, Arts 226/227. |

| Thereafter Art 136 special leave is discretionary, not appeal as of right. |

| Review, statutory appeal, judicial review and special leave differ. |

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PANEL 09/12 - CASE-LAW LADDER

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Sampath Kumar (1987): effective alternative institutional mechanism context.	
L. Chandra Kumar (1997): 226/227 and 32 basic structure; first instance.	
UOI v R. Gandhi (2010): functional equivalence and independence.	
MBA NTT (2014): deficient substitute for HC substantial-law function invalid.	
Rojer Mathew (2019) + MBA 2020/2021: rules, selection, tenure, influence.	
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POLITY 46 - ADMINISTRATIVE TRIBUNALS - PANEL 10/12

PANEL 10/12 - 2021 RATIONALISATION AND CURRENT-LAW METHOD

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| 2021 Act abolished specified appellate bodies and transferred functions.
| Consolidation may reduce duplication but shift workload/expertise/access costs.
| Invalidated age, short-tenure and executive-choice features are not current law.
| Read parent Act + surviving 2021 provisions/rules + binding judgments.
| Never imply every tribunal follows the ATA or one appeal structure.
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POLITY 46 - ADMINISTRATIVE TRIBUNALS - PANEL 11/12

PANEL 11/12 - INSTITUTIONAL COMPARISON AND PERFORMANCE

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CAT-service; NGT-environment; NCLT-company/insolvency; AFT-armed forces.	
TDSAT-telecom; legal basis/function/route differ; 323B label is not automatic.	
Benefits: expertise, focused procedure, consistency, access, court relief.	
Problems: vacancies, executive control, fragmentation, infrastructure, precedent.	
Measure disposal, vacancy duration, remands, user cost and decision quality.	
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POLITY 46 - ADMINISTRATIVE TRIBUNALS - PANEL 12/12

PANEL 12/12 - REFORM, PYQ ROUTE AND QUALIFIED VERDICT

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	Independent appointments/admin; secure conditions; vacancy calendar; budgets.
	Regional benches + e-filing + assisted access + searchable reasoned decisions.
	Coherent appeals, larger-bench conflict resolution, transfer plans and data.
	PYQ: define -> 323A/B -> ATA -> cases -> need/problems -> 2021 -> reform.
	Verdict: specialist first instance only under independence and constitutional review.
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